

		Contract, Breach of Contract, and Declaratory Relief. Bourbon Holdings filed an answer to the Cross-Complaint on 6-17-24. Therefore, Bourbon Holdings is already a party to the action and not a third party entitled to intervene pursuant to section 387.
13	Stranger v. McKenna Motors HB 2020-01152783 Petition to confirm arbitration award	Defendants (McKenna Motors HB, Neda Ingram and Danny McKenna) motion to confirm the arbitrator's decision dismissing Plaintiff's claims for failure to prosecute is GRANTED. The request for costs against Plaintiff is DENIED. The arbitrator's award dated 2/9/26 found that Plaintiff had failed to prosecute the action and made it difficult for Defendants to defend the action, mandating dismissal of the over-five-year-old case. The arbitrator found that although FEHA does not generally allow Defendants to recover attorney fees, Defendants were entitled to recover costs and expenses as the prevailing party under the California Arbitration Act and JAMS Employment Arbitration Rules. The arbitrator awarded Defendants total fees and costs of \$76,267.50 which included reimbursement of the arbitrator's nonrefundable \$64,805.00 retainer, the arbitrator's fees of \$7,062.50 for reviewing the motion to dismiss, and Defendants' fees/costs associated with drafting the motion to dismiss. The arbitrator did not make a finding that the action was frivolous, unreasonable, or groundless under FEHA. Although the arbitrator identified the monetary award as "sanctions," in fact the award constituted the arbitrator's fees as well as certain of Defendants' fees and costs. Under Armendariz and Government Code section 12965, the arbitrator's award of sanctions, fees, and/or costs against Plaintiff exceeded their legal authority. Defendants shall give notice.
15	Melchor v. Kia America, Inc. 2025-01493559 Demurrer to Complaint	Defendant Kia America, Inc.'s Demurrer to Plaintiff's Complaint is OVERRULED. Defendant's request for judicial notice of KIA having opted into the new lemon law procedures of Code of Civil Procedure section 871.20 as shown on the official California Department of Consumer Affairs website is granted. As to causes of action 1st – 4th, Defendant asserts these causes of action are barred by the six-year statute of repose set out under Code of Civ. Proc. § 871.20.